

EMPLOYEES' PROVIDENT FUND ORGANISATION

REGIONAL OFFICE - CHANDIGARH
S.C.O. 4-7,

No: 160720248098983

Dated : 22/07/2024

Demand Letter

TO,

NATIONAL INSTITUTE OF ELECTRONICS AND INFORMATION TECHNOLOGY
(NIELIT)(PBCHD0006048000),
NIELIT CHANDIGARH

Sub: Deposit/ Transfer of due contribution with interest into Pension Fund in respect of Shri/ Smt/Ms. TEJINDER SINGH BAWA (UAN No. : 100390287165) and option acknowledgement No: 230609194059015899301-Reg.

Madam/Sir,

This is to inform to you that the Application Form for joint Option of the above member has been examined and after verification of all details and records, due contribution with interest for Pension on Higher wages has been calculated. The total due contribution with interest to be remitted to Pension Fund on behalf of the Member is given in Para 4 below.

2. It is further informed that the above Member has Rs.0 as balance in his /her Provident Fund account. The Member has not given/already given consent (Strike down whichever is not applicable) to use accumulation in his/her PF account for payment of due contribution with interest. Further, the employee has undertaken to deposit contributions along with interest till date of payment.
3. However, in the interest of natural justice, the Member is once again requested to give his/her consent to transfer the accumulation in his/her PF account for payment of due contribution with interest and to deposit balance amount if any.
4. Further, month wise due amount with interest has been calculated and you, being the last employer, are directed to provide the consent of the employee for transfer of the amount standing in his/her PF balance immediately to this office and also deposit the outstanding amount of Rs.3549863 paid by : 31-07-2024, Rs.3573616 paid by : 31-08-2024, Rs.3597368 paid by : 30-09-2024 through ECR or Cheque (payable at par at all branches) on receipt of consent of the Member. The total due amount shall be deposited within three months of issue of this letter in the following manner:

(all amounts in Rs.)

Month No.(Due amount by the end of month)	Total due amount	Due amount with interest to be diverted from Provident Fund	Due amount with interest to be deposited
31-07-2024	3549863	0	3549863
31-08-2024	3573616	0	3573616
30-09-2024	3597368	0	3597368

5. The deposit will be made by the concerned Member only from the bank account available in EPFO records. The deposits may be made as under:-

- a. Through ECR functionality under 'PoHW Arrear' option.
- b. Cheque (payable at par at all branches) drawn in favour of concerning RPFC.

It is to be ensured that Cheque should have following details on its back side:

- i. Acknowledgement No.
- ii. UAN/PPO number
- iii. Name and Mobile number of the pensioner/member.
- iv. Demand letter number and date

6. Member who had not submitted joint request under para 26(6) of EPFS, 1952 earlier, has been allowed to submit the joint request with and undertaking from the last employer under para 26(6) of EPFS, 1952 in the attached pro forma (copy enclosed) in terms of circular No Pension/PoHW/23/Circular-26(6)/139610/1648 dated 14.06.2023. Therefore, you are requested to kindly upload through employer portal the joint request & undertaking duly filled & duly signed along with the consent of Member for diversion/payment, of due amount with interest.

7. It is further informed that the Joint Option of the members for Pension on Higher wages is subject to payment of due contributions with interest within three months. If the due amount with interest is not deposited in due time, it will be treated that the Member is no longer interested in option for pension on higher wages and accordingly the decision on the Joint Option shall be made.

**Assistant / Regional PF Commissioner
Regional Office.....**

Copy to:

Member [TEJINDER SINGH BAWA]

Enclosures:

1. Pro forma for joint request under para 26(6) of EPFS, 1952 and undertaking by the employer.

PERFORMA FOR JOINT REQUEST UNDER PARAGRAPH 26(6) OF THE EPF SCHEME 1952

(For implementation of Hon'ble Supreme Court judgment, dated the 04th November, 2022, in Civil Appeal No. 8143-8144 of 2022 [SLP (C) Nos. 8658-8659 of 2019] in the matter of the Employees' Provident Fund Organisation and others versus Sunil Kumar B. and others)

To,

The Regional Provident Fund Commissioner

Regional Office...

I am an existing member of the EPF Scheme, 1952 having UAN I have read and understood the provisions of paragraph 26(6) as well as the definition of 'pay' under paragraph 2 of the Scheme. I wish to contribute towards my EPF on actual (higher) pay exceeding the statutory wage ceiling (presently Rs 15,000/ per month) w.e.f. and accordingly, submit my option to contribute on my actual (higher) pay.

OR

I having read and understood Para 26(6) and the definitions of 'pay', and 'excluded employee' as mentioned under Para 2 of EPF Scheme, 1952, hereby declare that I am an 'Excluded Employee' as per Para 2(f)(ii) of the Scheme and am not enrolled as a member of the Scheme as my 'pay' from the date of joining my establishment having PF Code..... has been above the statutory wage ceiling (presently Rs.15,000/- per month).Now, I wish to become a member of the EPF Scheme, 1952 w.e.f. and accordingly hereby exercise my option for the same. I undertake to contribute to Employees' Provident Fund on actual (higher) pay.

I..... , being the employer as per the provisions of Section 2(e) of the EPF & MP Act 1952, in respect of the above-mentioned employee and am submitting a joint request for the purpose of enrolling the member/existing member who has been paying contribution on actual pay exceeding statutory wage ceiling/existing members whose actual pay exceeds statutory wage ceiling.

Place:
Employer
Name, Designation of the employer

Signature of

Name & Signature of the employee

(For implementation of Hon’ble Supreme Court judgment, dated the 04th November, 2022, in Civil Appeal No. 8143-8144 of 2022 [SLP (C) Nos. 8658-8659 of 2019] in the matter of the Employees’ Provident Fund Organisation and others versus Sunil Kumar B. and others)

UNDERTAKING BY THE EMPLOYER

I....., being the employer as per the provisions of Section 2(e) of the EPF & MP Act 1952, in respect of the above-mentioned employee, hereby undertake to pay the administrative charges payable at prescribed rates towards EPF contribution made by/ in respect of the said employee, including his/ her contribution on pay exceeding the statutory wage ceiling.

I further undertake to comply with all the statutory provisions under EPF & MP Act, 1952 and Schemes framed there under in respect of such employee with effect from.....

Place:
Date:

Signature of Employer

Name, Designation of the employer

(For Office use)

OFFICE OF THE REGIONAL PROVIDENT FUND COMMISSIONER

The above Joint Request is accepted with effect from _____ with a direction to make necessary entries in the records of the establishment and the Account of the Employee/Member*.

DA

To

The Employer (Establishment) for information to member

AO

APFC